

Everett settles Flock records case for \$25K

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A Flock camera at the corner of Broadway and Everett Avenue on Monday, April 6, 2026 in Everett, Washington. (Olivia Vanni / The Herald)



EVERETT — The city of Everett approved a \$25,000 settlement Wednesday in a case regarding the release of Flock Safety camera footage.

The settlement ends months of litigation that came after an individual requested footage from Everett’s automated license plate readers.

In May 2025, Oregon resident Jose Rodriguez requested all images and data logs from the cameras within a 30-minute window, according to court filings. The city had told him that the images were exempt from the Public Records Act because the city had not previously accessed the footage for an investigation. Rodriguez challenged the assertion, stating that he intended to sue the city. In response, the city requested a formal judgment (<https://www.heraldnet.com/2025/11/26/everett-seeks-snoco-judgment-that-flock-footage-is-not-public-record/>) in Snohomish County Superior Court.

On Feb. 24, Judge Joseph Wilson ruled (<https://www.heraldnet.com/2026/02/24/snohomish-county-judge-rules-flock-camera-footage-is-public-record/>) that the city’s footage was subject to public records requests. In response to the ruling, Everett temporarily paused (<https://www.heraldnet.com/2026/02/25/everett-temporarily-pauses-flock-camera-network/>) its Flock camera network, citing privacy concerns.

On March 6, the city appealed the ruling. On March 31, Gov. Bob Ferguson signed a bill into a law (<https://www.heraldnet.com/2026/03/31/washington-adds-safeguards-for-flock-cameras/>) that explicitly exempts Flock footage from the Public Records Act. After the law went into effect, Everett restarted its Flock network (<https://www.heraldnet.com/2026/04/22/everett-reactivates-flock-camera-network-after-passage-of-new-law/>) April 7.

On May 14, Judge Joseph Wilson vacated part of his November ruling to clarify that the records are no longer exempt from disclosure under the new law. The remainder of his ruling was still under appeal before the settlement agreement was reached.

Rodriguez requested Flock footage from several cities throughout Washington, including Stanwood and Sedro-Woolley. The two cities sought a similar judgment as Everett last year, and a Skagit County Superior Court judge ruled (<https://www.heraldnet.com/news/judge-denies-request-to-exempt-flock-footage-from-public-records-act/>), the footage was subject to public records requests. The cities appealed the ruling (<https://www.heraldnet.com/news/stanwood-sedro-woolley-appeal-flock-public-records-decision/>). On Wednesday, the cities requested that the appellate court dismiss the appeal given the new state law, according to court filings.

“While other cities tried to pretend that they didn’t know how or where to locate their Flock records, Everett moved to immediately preserve those records as required by law,”

Rodriguez’s attorney, Timothy Hall, said in a statement Thursday. “Having said that, we believe that Mr. Rodriguez would have ultimately prevailed on appeal, but we believe that this settlement represents a fair resolution of the matter for both parties.”

The city of Everett did not immediately respond to a request for comment.

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